

September Term 1868.

12

particular the premises being seen and by the Court fully understood, the Court proceeds to find the facts and decree the rights, titles and interests of the said parties in this suit, Plaintiff as well as defendants, and to determine the rights of the said parties in the lands in said petition mentioned, as follows: The Court finds that Catherine Sauer died in the year 1866 in the County of Jefferson in the State of Missouri, intestate; that at the time of her death an affidavit, was sworn in for simple and personal, of the following and estate, lands and tenements tract and 20 1/2 in Jefferson Adjoining to the City of St. Louis, lying in 6th street; the Court further finds that at the time of the said Catherine Sauer she left surviving her five children, three daughters, Johanna, who was married with James C. Ross, Agatha, who was married with William C. Allen and Elizabeth, and two sons, Daniel Sauer and Newton Sauer, conveying all the lands and distribution of the above said estate; the Court further finds that William C. Allen and Agatha departed this life intestate since the commencement of this suit and left surviving them, as their only heirs and distributees of the above said estate, real estate, small children of the said Catherine Sauer deceased, Joseph Sauer, Anna C. Sauer, Sarah A. Sauer, who were married with Frank P. Hensley and Daniel R. Sauer, the Court further finds that the above named defendant Johanna Sauer wife of James C. Ross, and Elizabeth C. Allen, Daniel Sauer and Newton Sauer, defendants, are each entitled to one undivided eighth part or interest in the above named tract of land, and that the said defendant Joseph Sauer, Anna C. Sauer, Sarah A. Sauer, Frank P. Hensley the husband of said Sarah A. Sauer, being entitled to a like interest in the part of the said Sarah A. Sauer and Daniel R. Sauer are each entitled to the one fourth of the one eighth part, or the one thirty-second part or interest in said real estate; The Court further finds that the said property cannot be divided in kind without great injury to the parties thereto. Therefore it is ordered, adj. postponed and decreed by the Court that the Sheriff of said County, sell the said real estate, or a fourth of the same, the proceeds going back with appropriate security for the purchase money, said sale to be conducted according to the law regulating sales of real estate under execution; that the money realized from such sale after paying the costs incurred in this cause be divided between the parties as hereinafter set forth;

John S. American et al.

William C. American et al.

It is now heard orally by the Court that H. A. Knutson has and he is hereby appointed Guardian ad litem for the infant defendants in this cause, and the said infant defendants by their said Guardian now have filed their answer.

Joseph M. Moore

John White

The defendant now have filed his motion to set aside the verdict and judgment in this cause, and to grant him a new trial. Which motion now coming on to be heard, Whereupon all and singular the premises being seen and by the Court heard

September Term 1868.

12

fully understood; it is considered by the Court that the same be overruled, to which ruling of the Court the defendant now have excepted.

State of Missouri

Grand Jurors

John H. Fouts

Now at this day Court as well as D. C. McMillan County and Circuit Court Attorney, who presented for and on behalf of the State, as the defendant in his own proper person; and thereupon it being demanded of him if and concerning the premises and how he will acquit himself of the same, except that he is guilty of the premises in manner and form as in the said indictment is charged and imposed upon him, and of this he puts himself upon the mercy of the Court. Therefore it is considered by the Court that the said John H. Fouts undergo a confinement in the Penitentiary House situate at Jefferson City in the State of Missouri for the period of two years, and thereupon the said John H. Fouts is committed to the custody of the Sheriff of Jefferson County, to be by him, as soon as possible, safely removed to the Penitentiary aforesaid, thence to be kept and imprisoned according to the provisions of this judgment.

William L. Scott

Henry Preston

On application and at the call of the plaintiff, this cause is now here continued to the next term of this Court.

William L. Scott

Seaton Johnson

On application and at the call of the plaintiff, this cause is now here continued to the next term of this Court.

Henry Preston et al.

Robert McCaffrey

This cause is now here continued, at the call of the defendant, to the next term of this Court.

Henry Preston et al.

William L. Scott

This cause is now here continued, at the call of the defendant, to the next term of this Court.

160 12 September Term 1868 . singular the premises being seen and by the Court fully understood , the Court proceeds to find the facts and decree the rights , titles and interests of the said parties in this suit , plaintiff as well as defendants , and to determine the rights of the said parties in the lands in said petition mentioned as follows ; The Court finds that Catherine Laure died in the year 1816 , in the County of Cooper in the State of Missouri , intestate ; that at the time of her death as aforesaid , was seized in fee simple and possessed of the following real estate , lands and tenements to wit Lot No 2 in Hoaglands Addition to the City of Boonville fronting on 6th Street ; the Court further finds that at the time of the said Catharine Lauri she left surviving her five children , three daughters , Johnna , who intermarried with James C Ross , Anfield who intermarried with William Caton , and Elizabeth , and two sons , Daniel Lauri and Newton Lauri , embracing all the heirs and distributers of the above real estate ; the Court further finds that William Caton and Anfield Caton departed this life intestate since the commencement of this suit and left surviving them , as their only heirs and distributees of the above described real estate , grand children of the said Catharine Laurie deceased , Joseph Caton , Aaron Caton , Sarah A Plumley who intermarried with Frank Plumley and Daniel R Caton ; the Court further finds that the above named defendant , Johanna Ross wife of James C Ross , and Elizabeth Caton , Daniel Lauri and Newton Lauri defendants , are each entitled to one undivided fifth part or interest in the above named real estate , and that the said defendants , Joseph Caton , Aaron Caton , Sarah A Plumley Frank Plumley the husband of said Sarah A Plumley , being entitled to a life interest in the part of the said Sarah A Rumley , and Daniel R Caton are each entitled to the one fourth of the one fifth part , or the one twentieth part or interest in said 7 real estate ; The Court further finds that the said property cannot be divided in 1 kind without great injury to the parties hereto , Therefore it is ordered , adjudged and decreed by the Court that the Sheriff of said County , sell the said real estate on a Credit of six months , the purchaser giving Bond with approved security for the purchase money , said sale to be conducted according to the law regulating sales of real estate under execution ; that the money realized from such sale after paying the Costs incurred in this cause be divided between the parties as hereinbefore set forth , John L Duncan et al us William Duncan et al It is now here ordered by the Court that H A Hutchison be and he is hereby appointed Guardian adlition for the infort defendants to this cause , and the said infant defendants by their said Guardian now here file their answer Joseph H Moore as John White The defendant now here files his motion to set aside the verdict and Judgment in this Cause , and to grant him a new trial , which motion now coming on to be heard . Whereupon all and singular the premises being seen and by the Court here 12 161 September Term 1865 fully understood , it is considered by the Court that the same be overruled , To which ruling of the Court the defendant now here excepts , State of Missouri Grand Larceny John W Fouts Now at this day comes as well D. A. McMillan County and Exofficio Circuit Attorney , who prosecutes for and on behalf of the State , as the defendant in his own proper person ; and thereupon it being demanded of him of and concerning the premises and how he will acquit himself of the same , says that he is guilty of the premises in manner and form as in the said indictment is charged and imposed upon him , and of this he puts himself upon the mercy of the Court , Therefore it is considered by the Court here that the said John W Fonts undergo a confinement in

the Penitentiary House situate at Jefferson City in the State of Missouri , for the period of two years ; and thereupon the said John W Fouts is committed to the Custody of the Sheriff of Cooper County , to be by him , as soon as possible , safely removed to the Penitentiary aforesaid , therein to be kept and imprisoned according to the provisions of this Judgment , William L Scott a Henry Preston On application and at the cost of the plaintiff , this cause is now here continued to the next term of this Court , William L Scott Preston Johnson On application and at the cost of the plaintiff , this cause is now here continued to the next term of this Court Henry Preston et al Robert McMahan This cause is now here continued , at the cost of the defendant , to the next term of this Court , Henry Preston etal as William L Scott This Cause is now here continued , at the last of the defendant , to the next term of this Court ,

Citation:

"Cooper, Missouri, United States records," images, FamilySearch (<https://www.familysearch.org/ark:/61903/3:1:3Q9M-C39L-R3C9-R?view=fullText> : Sep 14, 2026), image 429 of 685; Missouri. Circuit Court (Cooper County).
Image Group Number: 008483715

<https://www.familysearch.org/ark:/61903/3:1:3Q9M-C39L-R3C9-R?view=fullText>